FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF BRONX

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U.S. BANK TRUST NATIONAL ASSOCIATION

Plaintiff,

-against-

MYRTLE M. FOSTER

Defendant.

Index No. 35373/2018E

MORTGAGED PROPERTY:
as 2749 Fish Avenue, Bronx, NY 10469

COUNTY:

SBL #: Block 4529 and Lot 40

Sale Date:

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 574,549.67
2. Adjusted Judgment Amount (Upset Price): $ 615,000
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 1,000
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $

Referee Name: Louis J Russo, III, Esq., Telephone: 7189310468

Address: 1200 Morris Park Ave Bronx NY 10461

Email: LouJRusso@Aol.com Signature/Date: 3/23/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

US Bank TRUST NA c/o
Friedman Vartolo LLP
85 Broad St #501,
New York, NY 10004

Email:

Signature/Date:

C. To Be Completed by Purchaser

Name:

Address:

Telephone:

Email:

Signature/ Date:

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/